

# THE INJUSTICE REFORM NETWORK (IRN)

*Justice | Transparency | Abolition | Community*

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**To:** Newport News City Residents, Newport News Council | Newport News Police Department |  
Newport News Office of the Commonwealth's Attorney

**CC:** Newport News NAACP | Virginia Attorney General | Virginia State Bar | Community Stakeholders

**RE:** Formal Community Advocacy and Legal Analysis — NNPD Officer's Use of Force Against Black Youth at City Center (May 24, 2026) and the Improper Extrajudicial Statements of Commonwealth's Attorney Shannon Jones

## A COMMUNITY ACCOUNTABILITY REPORT

*Issued by The Injustice Reform Network (IRN) | June 13, 2026*

*Prepared in the dual capacity of community advocacy organization and lay legal analysis — not legal representation*

### SECTION I: PREAMBLE —

#### THEY WERE ALREADY GONG HOME

In the early morning hours of Sunday, May 24, 2026, a group of Black youth gathered at City Center in Newport News. According to Chief Drew's own account at the May 26 press conference, the youth had previously been at a location in Hampton — understood to be a post-prom social gathering area — where fights broke out. Critically, the youth left that situation. They removed themselves from violence without police intervention, **choosing peace over conflict**. They arrived at City Center for some time and then were in the process of leaving when the encounter that prompted this report occurred. IRN makes no claims beyond what Chief Drew himself stated: **these young people left trouble and headed somewhere else where there wasn't any and was then met with trouble from the Newport News Police Department, not other youth but the POLICE**. Let that sit for a moment. That **is** the foundation of everything that follows.

A Newport News Police Department officer placed himself in front of 2 moving vehicles in an active parking garage at 2 a.m., generated a dangerous situation through his own irrational tactical positioning, then brandished and pointed his firearm at a Black youth in an SUV — a young man whose only recorded statement was: **"I just want to go home."** Sighhhh.

The Injustice Reform Network (IRN) issues this report to formally condemn the officer's conduct, Chief Steve Drew's defense of that conduct at his May 26, 2026 press conference, and the extrajudicial statements of Newport News Commonwealth's Attorney Shannon Jones, which possibly violated established standards of prosecutorial ethics under the Virginia Rules of Professional Conduct.



## SECTION II: HISTORICAL AND LEGAL CONTEXT — THE PATTERN THIS INCIDENT CONTINUES

What occurred at City Center on May 24, 2026 did not happen in isolation. It is one instance within a documented, statistically confirmed pattern of Black youth being subjected to disproportionate police contact, force, and criminalization in Virginia and across the United States.

### A. Documented Racial Disparity in Virginia Juvenile Justice

A 2021 report by the Virginia Joint Legislative Audit and Review Commission (JLARC) found that Black youth in Virginia were approximately **2.5 times more likely** than white youth to be referred to the juvenile justice system. The racial disparity was greatest for law enforcement referrals specifically. The report noted that regional disparities were severe — in Richmond, Black youth were 4.7 times more likely than white peers to be referred. These are not aberrations. They are the statistical expression of a systemic pattern.

Virginia has itself recognized this problem legislatively. The Virginia Community Policing Act (**Va. Code § 52-30.1 et seq.**) defines and prohibits "bias-based profiling" — defined as law enforcement actions based solely on an individual's real or perceived race, ethnicity, or age. The Act requires law enforcement agencies to collect and report data on investigatory stops, stop-and-frisks, and detentions. The encounter on May 24, 2026 involved a group of Black youth who were stopped not because they had committed any identified offense, but because they were present — a paradigmatic scenario the Act was designed to address.

### B. Adultification Bias — The Research

The Georgetown Law Center on Poverty and Inequality has documented the phenomenon of adultification bias — the documented tendency to perceive Black children as older, less innocent, and less deserving of protection than white children of the same age. Research confirms that Black girls are perceived as needing less nurturing and support as early as age five. Black boys are consistently perceived as older and more physically threatening than they are, a bias that directly influences the likelihood and severity of use of force.

This bias is not theoretical. It is measurable. It shapes split-second police decisions. And it was almost certainly operative on May 24, 2026, when an officer in a garage full of Black teenagers — young people who had already walked away from violence once that night — reached for his weapon.

### C. The Lives We Have Already Lost

No accountability report concerning Black youth and police can be written without naming those who did not survive similar encounters:

- Trayvon Martin, 17 — killed walking home from a convenience store.
- Jordan Davis, 17 — killed in a gas station parking lot for playing music deemed too loud.
- Tamir Rice, 12 — killed within two seconds of police arrival while playing in a park.
- Michael Brown, 18 — killed days before he was to start college.
- Rekia Boyd, 22 — killed by an off-duty officer while socializing with friends.



- Ma'Khia Bryant, 16 — killed in Columbus, Ohio, on the same day Derek Chauvin was convicted of murdering George Floyd.
- Daunte Wright, 20 — killed during a traffic stop while his mother waited on the phone.

In each of these cases, Black youth were not engaged in violence. They were living. **The parking garage at City Center on May 24, 2026 was one trigger pull away from adding another name to this list.** The fact that it did not is not vindication of the officer. It is a mercy the system cannot take credit for.

### SECTION III: THE DIGNITY OUR CHILDREN ARE DENIED

America does not grant Black children the same grace it affords white children. This is not rhetorical. **It is researched, documented, and replicated across disciplines. THIS IS NOT AN OPINION OF THE INJUSTICE REFORM NETWORK, THIS IS DOCUMENTED DATA.** When white teenagers gather in a parking lot after a celebration, society calls it adolescence. When Black teenagers do the same, society calls law enforcement.

**We ask every adult in this city to sit with a couple simple questions: Why don't our children get to be children? Why is our first response ALWAYS punitive in nature when it comes to Black youth?**

Did we not fight as teenagers? Did we not make noise, push limits, stay out too late, test boundaries? Were we not afforded the grace of growing up — of making mistakes and surviving them, of being corrected without being criminalized? We did. And many of us did far worse than gather in a parking garage after **GRADUATING FROM HIGH SCHOOL**. We are alive because the full weight of the state was not turned against our adolescence.

Black girls at City Center that night were not seen as teenagers who had already chosen to walk away from a volatile situation earlier that evening. They were seen — when they were seen as individuals at all — as women who warranted no special protection. Black boys were not seen as teenagers who had already deescalated once before police ever arrived. They were seen as threats, as criminals who needed to be eliminated. Society has offered our children two destinations: **prison** or the **grave**. And we — the adults in this community — share culpability for that, because we have largely allowed it.

**IRN holds this mirror to our own community as well.** We have given our youth nightclubs but not mentorship. Social media but not safe spaces. Criticism but not counsel. We have asked 'where are their parents?' without asking 'where are we?' When hundreds of Black teenagers organize a mass meetup and actually show up — that is not a crisis. That is organizing capacity. That is proof that these young people can communicate, coordinate, and mobilize. Those are not the skills of a lost generation. Those are the skills of a generation that has not yet been given a worthy direction and structure.

A mass youth gathering is a missed opportunity for every church, every community organization, every mentor who did not show up and say: we see you, we want you, come with us. **Instead, we sent police. Instead, we passed a curfew. Shame on us!** We do not get to offer our children nothing and then condemn them for where they land.

### SECTION IV: LEGAL ANALYSIS — THE OFFICER'S USE OF FORCE



IRN is a community legal advocacy organization, not a law firm, and nothing in this section constitutes legal representation or the rendering of legal advice. The analysis below applies established federal constitutional standards to the publicly available facts of this incident as described by Chief Drew himself at the May 26, 2026 press conference.

## A. The Controlling Legal Standard — *Graham v. Connor*, 490 U.S. 386 (1989)

All claims that law enforcement officers have used excessive force — deadly or not — in the course of an arrest, investigatory stop, or other seizure are analyzed under the Fourth Amendment's objective reasonableness standard. *Graham v. Connor*, 490 U.S. 386, 395 (1989). The analysis requires a careful balancing of the nature and quality of the intrusion on the individual's Fourth Amendment interests against the government's countervailing interests.

The Supreme Court identified three non-exhaustive factors relevant to the reasonableness inquiry: (1) the severity of the crime at issue; (2) whether the suspect poses an immediate threat to the safety of the officer or others; and (3) whether the suspect is actively resisting arrest or attempting to evade arrest by flight. *Id.* at 396.

Applied to the May 24, 2026 incident, this standard raises serious questions about the officer's conduct:

- **Severity of the crime at issue:** These were teenagers gathered at City Center late at night. The stated law enforcement concern was a curfew — a civil infraction, not a criminal offense. No crime of any severity had been identified at the time the weapon was drawn. Chief Drew did not allege that any of the youth present had committed or were committing an actual crime and certainly not the young male driver.
- **Immediate threat to officer safety:** The officer placed himself in front of moving vehicles in an active parking garage. The threat to his safety, to the extent it existed, was created by his own irrational tactical positioning — not by the conduct of the youth. The driver of the black SUV swerved to avoid a vehicle in front of him, not to target the officer. Chief Drew presented no evidence of intent to harm.
- **Active resistance or flight:** The youth were leaving — departing the premises — when the officer inserted himself into their path. Departure is the opposite of resistance or flight from lawful authority.

Under the objective reasonableness standard of *Graham*, the drawing of a firearm in a crowded parking garage against youth who were leaving, had committed no identified crime outside of a possible curfew infraction, and showed no evidence of intent to harm, raises substantial Fourth Amendment concerns that warrant independent review.

## B. The Officer's Self-Created Danger

A growing body of federal circuit court authority recognizes that officers may not create dangerous situations through their own conduct and then invoke that danger to justify force. While this doctrine has been applied variably across circuits, the underlying logic applies here with force: the officer stepped in front of moving vehicles at 2 a.m. in an active parking garage. That positioning — that choice — is what generated the alleged threat to his safety. When an officer manufactures the



exigency, the exigency is a weaker justification for escalation. Commonwealth Attorney Shannon Jones of all people should know this or at least is expected to know this as a prosecuting attorney.

### **C. The Officer's Cited Misconduct**

Chief Drew acknowledged at the May 26 press conference that the officer was being rude and using profanity toward the youth during the same encounter this is a direct demonstration of the lack of respect that law enforcement has for our youth. They weren't deserving of any respect even when not breaking the law. This is not a minor administrative footnote. An officer who, within a single incident, draws a weapon on teenagers and directs profane language at them has not demonstrated the professional judgment that use-of-force policies and Fourth Amendment reasonableness review require. The lack of a citation for misconduct in the same incident is a material fact that solidifies Chief Drew's characterization of the response as "textbook" and warrants consideration in any use-of-force review.

### **D. Virginia's Anti-Bias Policing Framework**

**Virginia Code § 52-30.2 prohibits bias-based profiling by law enforcement officers, defined as actions based on the real or perceived race, ethnicity, or age of an individual.** IRN calls for the Newport News Police Department to conduct and publicly disclose a bias review of the May 24, 2026 encounter consistent with Virginia's community policing framework, if there is one.

## **SECTION V: LEGAL ANALYSIS — COMMONWEALTH'S ATTORNEY SHANNON JONES**

The conduct of Commonwealth's Attorney Shannon Jones at Chief Drew's May 26, 2026 press conference warrants specific, serious, and citation-grounded analysis. What she said, where she said it, and what could have been pending before her office at the time of her statements could possibly implicate the Virginia Rules of Professional Conduct governing prosecutors.

### **A. What Jones Said and Where She Said It**

Jones appeared at a law enforcement press conference organized by the Newport News Police Department. At that press conference, she publicly stated that the officer's actions were appropriate, praised his communication as a model of deescalation, and declared that the officer "was very scared in that moment as well." She made these statements while charges arising from the same incident — specifically curfew violations against the youth present — remained pending and subject to possible prosecutorial discretion by her office.

### **B. Virginia Rule of Professional Conduct 3.6 — Trial Publicity**

Virginia Rule of Professional Conduct 3.6(a) provides that a lawyer who is participating or has participated in the investigation or litigation of a matter shall not make an extrajudicial statement that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding. Rule 3.6 expressly applies to prosecutors.

*(Va. R. Prof. Conduct 3.6(a); see also Comment [8] (cross-referencing additional duties of prosecutors under Rule 3.8(f)).)*



Jones' press conference statements — affirming the officer's conduct as appropriate and praising his performance, while charges against the youth were pending — had a substantial likelihood of materially prejudicing those proceedings. Her endorsement of the officer's account, delivered with prosecutorial authority before any adjudication, prejudged the very matters her office was responsible for evaluating with impartiality.

### **C. Virginia Rule of Professional Conduct 3.8 — Additional Responsibilities of a Prosecutor**

**Virginia Rule of Professional Conduct 3.8, governing the additional responsibilities of a prosecutor, requires prosecutors to refrain from making extrajudicial comments that have a substantial likelihood of heightening public condemnation of the accused. *Va. R. Prof. Conduct* 3.8(f).**

Jones' statements did precisely this — but in reverse. By publicly condemning the youth's presence and endorsing the officer's characterization of events before any proceeding, she functionally prejudged the matter from the prosecutorial seat- even going forward if there's ever another altercation. The youth present at City Center were not defendants at the time of her statements, but charges against them were possibly pending. Her public alignment with law enforcement at a police press conference, on facts directly at issue in those pending matters, constitutes exactly the kind of extrajudicial conduct Rule 3.8 is designed to prevent.

Further, *Comment [4] to Virginia Rule 3.8* notes that because of the power and visibility of a prosecutor, compliance with these Rules — and recognition of the need to refrain even from some actions technically allowed to other lawyers — may, in certain instances, be of special importance. Jones' decision to stand at a police podium and publicly validate law enforcement's account of events involving pending charges against youth exemplifies the conduct the Rules are designed to discourage.

### **D. The Specific Problem With Jones' Claim About the Officer's Fear**

Jones stated publicly that the officer "**was very scared in that moment as well.**" in an attempt to smooth things over. This statement deserves specific scrutiny. Under *Graham v. Connor*, the legal standard for use of force is objective reasonableness — not subjective fear. 490 U.S. at 396 ("[T]he question is whether the officers' actions are 'objectively reasonable' in light of the facts and circumstances confronting them, without regard to their underlying intent or motivation."). An officer's subjective fear is not the legal standard, and a prosecutor who declares that standard satisfied — without evidence, at a press conference — is not performing legal analysis. She is performing advocacy.

**Jones had no evidentiary basis for her claim about the officer's subjective emotional state.** She was not in the garage. She was not present during the encounter. She viewed curated still images at a press conference arranged by the department whose conduct was under scrutiny. Her declaration of the officer's fear as fact was not legal analysis. It was a character reference delivered with the weight of prosecutorial authority — and that misuse of office is precisely what the Virginia Rules of Professional Conduct exist to prevent.

### **E. The Demand: Recusal**



**IRN demands that Commonwealth's Attorney Shannon Jones immediately recuse herself from all matters arising from the May 24, 2026 City Center incident** — including any charges against youth present that evening and any review of the officer's conduct that may come before her office, now **AND going forward. Her public statements have created an irreparable appearance of bias.** The standard for recusal is not whether bias exists in fact, but whether a reasonable person would question the impartiality of the proceedings. That standard is unambiguously met here.

IRN further calls on the Virginia State Bar's Standing Committee on Legal Ethics to review Jones' conduct at the May 26, 2026 press conference for potential violations of Rules 3.6 and 3.8 of the Virginia Rules of Professional Conduct. This is only to ensure that our judicial tribunals are free from bias and that the law and ethics are constantly applied **ACROSS THE BOARD, FOR EVERYONE!**

## **SECTION VI: THE INSTITUTIONAL AFTERMATH — PUNISHING THE VICTIMS**

Following the incident, the City of Newport News enacted a temporary curfew for unaccompanied minors at City Center. The officer received a citation for misconduct. The youth received a curfew restricting their access to public space.

**The officer was unofficially critiqued for his use of profanity while our youth lost their city—that's an official sanction FOR EVERY CHILD UNDER 18.**

This is the calculus Black communities have endured for generations. When law enforcement fails, it is Black people who are surveilled, restricted, and criminalized in response. A curfew targeting youth at a specific location — enacted directly following an incident in which the force used against those same youth is under scrutiny — is not a public safety measure. It is an institutional power move that uses the machinery of local governance to finish what the officer started: removing Black youth from a space they had every right to occupy.

IRN further notes that the June 6, 2026 incident at City Center — in which teens were actually arrested for convening at the same location — demonstrates that this is not a one-time failure. It is policy. And policy requires a policy response, not a single press conference.

## **SECTION VII: IRN'S FORMAL DEMANDS**

The Injustice Reform Network formally demands the following from Newport News City Government, the Newport News Police Department, and the Office of the Commonwealth's Attorney:

1. **FULL RELEASE OF ALL BODYCAM FOOTAGE** from the May 24, 2026 incident — unedited and in its entirety. The community is owed complete transparency. Curated still images presented at a departmentally controlled press conference do not meet that standard.
2. **IMMEDIATE RECUSAL** of Commonwealth's Attorney Shannon Jones from all matters connected to the May 24 and June 6, 2026 City Center incidents, including any pending charges against youth and any potential review of officer conduct. Her public statements have disqualified her from impartial participation.
3. **INDEPENDENT USE-OF-FORCE REVIEW** of the officer's conduct by a body outside the Newport News Police Department, including examination of the firearm draw, the profanity citation, and the officer's tactical decision to position himself in the path of moving vehicles. We are also requesting that the officer be removed off of any street beats and reassigned to desk



duty until the results of the investigation have been released to the public. We are also

**DEMANDING AN OFFICIAL APOLOGY FROM THE OFFICER.**

4. **DISCLOSURE OF THE OFFICER'S IDENTITY AND BADGE NUMBER.** The youth present that night are subject to public curfew charges. The officer who drew a weapon on them and was cited for misconduct in the same encounter remains unnamed. This asymmetry is unacceptable.
5. **REVIEW AND DISMISSAL** of all charges against the driver of the black SUV if any were filed, and independent review of all curfew charges arising from the May 24 and June 6 incidents for potential dismissal.
6. **AN INDEPENDENT COMMUNITY FORUM** — not a departmentally managed press conference, but a community-led public hearing where affected youth, families, and residents can speak without restriction or narrative management by law enforcement.
7. **RECONSIDERATION AND REPEAL** of the City Center youth curfew ordinance, which constitutes a racially disparate policy response to a law enforcement failure and punishes the victims of that failure.
8. **FORMAL PARTNERSHIP WITH THE INJUSTICE REFORM NETWORK AND OUR COMMUNITY PARTNERS** to develop and implement a comprehensive, funded, and sustained youth engagement framework for Newport News. This partnership will include:
  - Youth violence prevention and deescalation programming grounded in community trust — not law enforcement surveillance.
  - Curriculum designed to build individual self-worth and collective racial pride in Black youth — so they understand who they are, where they come from, and what they are worth.
  - Honest, practical education about how Black youth must navigate public spaces and encounters with law enforcement in a system that will consistently seek to make them responsible for the conditions imposed on them — and how to survive that reality without surrendering their dignity or their constitutional rights.
  - Redirection of youth mass organizing capacity: when hundreds of Black teenagers coordinate and show up together, that is not a mob. That is leadership infrastructure waiting for direction. IRN and our partners are prepared to meet that energy and give it somewhere meaningful to go.
  - Funded, sustainable, community-overseen programming with regular public reporting — not a press release or a one-time event.

*The city saw hundreds of Black youth organize, communicate, and mobilize — and called it a problem. IRN sees it as an opportunity this city has already wasted once. We will not allow it to be wasted again.*

**These young people left trouble in Hampton and brought peace to Newport News. They were repaid with a drawn weapon, profanity from a badge, and a curfew that removed them from the city some of them call home. If all this community is prepared to offer Black youth is prison or the grave, then every adult in a position of power — in government, in law enforcement, in the church, in this community — bears responsibility for what comes next. The Injustice Reform Network will not be silent. We are watching. We are documenting. And we will not stop until Black children in Newport News are free to simply live.**

Respectfully and Unapologetically Submitted,  
**BeKura W. Shabazz Mainoo**